

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MICHAEL BAKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MOHAMMAD ABDELFAHAT, Shield No. 603, NYPD
POLICE OFFICER SERGIOMONTY M. ANG, Shield No.
17175, and NYPD POLICE OFFICERS JOHN AND JANE
DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 1, 2023

Yours, etc.

Gabriella Orozco

Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MOHAMMAD ABDELFAHAT, Shield No. 603,
PSA3 Precinct, 25 Central Avenue, Brooklyn, NY 11206

NYPD POLICE OFFICER SERGIOMONTY M. ANG, Shield No. 17175,
PSA3 Precinct, 25 Central Avenue, Brooklyn, NY 11206.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MICHAEL BAKER,

Plaintiff,

INDEX NO.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MOHAMMAD ABDELFAH, Shield No. 603, NYPD
POLICE OFFICER SERGIOMONTY M. ANG, Shield No.
17175, and NYPD POLICE OFFICERS JOHN AND
JANE DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MICHAEL BAKER, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about June 3, 2022, at approximately 09:14 p.m., while lawfully in the vicinity of Hancock Street and Tompkins Avenue, County of Kings, State of New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers caused serious physical and emotional injuries to Plaintiff. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MICHAEL BAKER is a resident of the State of New York.

3. NYPD Police Officer Mohammad Abdelfattah, Shield No. 603, is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Mohammad Abdelfattah, Shield No. 603, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, NYPD Police Officer Mohammad Abdelfattah, Shield No. 603, was assigned to the Police Service Area 3 of the NYPD

6. NYPD Police Officer Sergiomonty M. Ang, Shield No. 17175, is and was at all times relevant herein an Officer with the New York City Police Department.

7. SERGIOMONTY M. ANG, Shield No. 17175, is being sued in their individual and official capacity.

8. Currently and at all times relevant herein, SERGIOMONTY M. ANG, Shield No. 17175, was assigned to the Police Service Area 3 of the NYPD.

9. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

STATEMENT OF FACTS

1. On or about June 3, 2022, at approximately 09:14 p.m., while lawfully in the vicinity of Hancock Street and Tompkins Avenue, County of Kings, State of New York, when the defendant Police Officers unlawfully stopped, assaulted and arrested Plaintiff without legal justification.

2. Plaintiff was outside the aforementioned location, talking with friends, when he observed several uniformed Defendant Officers jump out of a van and begin approaching.

3. Defendant Officers approached one of the individuals and began questioning him about a bottle of liquor on the ground several feet away from the group.

4. Plaintiff pulled out his mobile phone to video record the sudden confrontation.

5. Defendant Officers slapped Plaintiff's phone out of his hand, despite the fact that Plaintiff was not interfering with the Defendant Officers' ability to do their jobs.

6. Defendant Officers MOHAMMAD ABDELFAATTAH and SERGIOMONTY M. ANG then jumped on the Plaintiff, threw him on the ground and handcuffed him.

7. Defendant Officers MOHAMMAD ABDELFAATTAH and SERGIOMONTY M. ANG conducted the unlawful frisk and did not feel anything hard or anything they believed to be illegal.

8. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have probable cause to approach the Plaintiff in the first place.

9. Plaintiff did not resist arrest.

10. Defendant Officers then threw Plaintiff into a police vehicle and transported him to the PSA3 Precinct.

11. Despite Plaintiff's pleas for information, none of his assailants told him that he was being arrested, what he was being arrested for, or where he was being taken.

12. As a result of the Defendant Officers' excessive force, Plaintiff sustained serious physical, emotional and psychological injuries.

13. While Plaintiff was in custody, the Defendant officers provided Kings County District Attorney's Office with false, misleading, and/or incomplete information that Plaintiff committed a crime.

14. Specifically, the Defendant officers falsely stated to the Kings County District Attorney's Office that Plaintiff was Obstructing Governmental Administration, displaying violent behavior and resisting arrest.

15. Plaintiff remained in custody for 24 hours until June 4, 2022.

16. All criminal charges against Plaintiff were dismissed and sealed on July 06, 2022.

17. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

18. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

19. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

20. Plaintiff continues to suffer emotional trauma and distress from the actions of defendant officers complained of above.

21. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

22. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

23. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

24. Defendants owed a duty of care to Plaintiff.

25. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by injuring his wrists.

26. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

27. All of the foregoing occurred without any fault or provocation by Plaintiff.

28. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

29. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

30. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

31. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

32. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

33. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

34. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

35. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

37. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

38. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**False Imprisonment**

40. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

45. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force**

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

47. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and throwing Plaintiff into a vehicle and slamming Plaintiff against the vehicle constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Assault

49. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

50. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

56. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tased Plaintiff, roughly handcuffing, grabbing and throwing Plaintiff into a vehicle and slamming Plaintiff against the vehicle brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

62. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

63. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

68. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

69. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants,

individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

70. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

71. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

72. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

73. Defendants failed to intervene to prevent the unlawful conduct described herein.

74. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent emotional injury, his liberty was restricted for an extended period of time, he was put in fear of her safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

79. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

80. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

81. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

82. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

83. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

84. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

87. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, psychological and physical injuries.

TWELFTH CAUSE OF ACTION
Malicious Prosecution

88. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

90. Defendants commenced and continued a criminal proceeding against Plaintiff.

91. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

92. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

THIRTEENTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

93. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

94. Defendants despite being aware that Plaintiff was suffering and required medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION
Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

101. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

102. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours in total.

103. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

104. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

105. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

106. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

107. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

109. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

126. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical, emotional and psychological injuries and was otherwise damaged and injured.

EIGHTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

110. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

111. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against his by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

112. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic, emotional and psychological injuries, as well as a deprivation of liberty.

113. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, emotional and psychological injuries, as well as a deprivation of liberty.

114. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

141. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ROBERTO PAULINO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees

inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
March 1, 2023

By: *Gabriella Orozco*
Gabriella Orozco, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MOHAMMAD ABDELFATTAH, Shield No. 603,
PSA3 Precinct, 25 Central Avenue, Brooklyn, NY 11206

NYPD POLICE OFFICER SERGIOMONTY M. ANG, Shield No. 17175,
PSA3 Precinct, 25 Central Avenue, Brooklyn, NY 11206.

ATTORNEY'S VERIFICATION

GABRIELLA OROZCO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 1, 2023

Gabriella Orozco

GABRIELLA OROZCO